

23CMCV00796 23CMCV00796

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-08-03

Motion: CITY'S MOTION FOR ATTORNEY'S FEES

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Case Number: 23CMCV00796 Hearing Date: August 3, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

CITY OF COMPTON,

Plaintiff,

vs.

MEHDI

JAVADIAGHDAM, et al.,

Defendants.

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CASE NO: 23CMCV00796

[TENTATIVE]

ORDER RE: CITY'S MOTION FOR ATTORNEY'S FEES

Dept.

A

DATE:

August 3, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 06/01/2023

TRIAL:

11/10/2025

MOVING

PARTY: Plaintiff City of
Compton

RESPONDING

PARTY: None

1.

Background

This is a narcotics abatement action. Plaintiff City of Compton ("City") alleged that defendant Green House Cure operated an unlicensed marijuana dispensary business on the property located at 2007 E. Compton Blvd., Compton, CA 90221 (the "Property"). City alleged that defendants FS International, Inc. and Mehdi Javadiaghdam were at all relevant times the owner of the Property. A non-jury trial was held in this action on November 10, 2025. Judgment was entered for City and against defendants FS International, Inc. and Mehdi Javadiaghdam on February 26, 2026.

On February 8, 2024, the court appointed a receiver to take control of and operate the Property in order to terminate the illegal business and repair and rehabilitate the Property. John S. Rey ("Receiver") was appointed as receiver for the Property.

On September 10, 2025, Receiver moved for an order approving the sale of the Property for \$950,000.00. The court granted Receiver's motion on October 8, 2025.

On April 23, 2026, the court granted Receiver's motion for discharge and terminated the receivership.

2.

Discussion

City moves for attorney's fees as the prevailing party pursuant to Health and Safety Code § 17980.7, subd. (c). In support of this motion, Plaintiff provides the declaration of attorney David R. Welch. Attorney Welch declares the hourly rates of the individuals who worked on this action and provides a set of itemized time entries for work on the instant action. Plaintiff also filed a memorandum of

costs. No parties have opposed this motion.

“[T]he fee setting

inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. . . .

The reasonable hourly rate is that prevailing in the community for similar work.

The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided.” (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095 (internal citations omitted); Reck v. FCA US LLC (2021) 64 Cal.App.5th 682, 691 [“To determine a reasonable attorney fee award, the trial court applies the lodestar method”].)

The prevailing party is

entitled to “compensation for all the hours reasonably spent” in litigating the action to a successful conclusion. (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 821 (Robertson).) ‘Reasonably spent’ means that time spent ‘in the form of inefficient or duplicative efforts is not subject to compensation.’ (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 394 (Horsford).) A plaintiff who receives monetary recovery as part of a settlement agreement is considered to be the prevailing party. (DeSaulles v. Community Hospital of Monterey Peninsula (2016) 62 Cal.4th 1140, 1156.)

“[T]he verified time

statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.” (Horsford, supra, 132 Cal.App.4th at p. 396.) However, the court may rely on his or her own experience and is given broad discretion in calculating reasonable attorney’s fees. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132 [“The experienced trial judge is the best judge of the value of professional services rendered in his court...”].)

The lodestar may be

augmented or diminished “by taking various relevant factors into account including (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award.” (Ibid.) The multiplier is a

risk enhancement based on the probability of loss. (Robertson, *supra*, 144 Cal.App.4th at p. 821.)

Plaintiff requests \$
77,967.00 in previously-incurred
attorney's fees and \$4,737.50 in fees anticipated to be incurred in bringing
the instant motion, totaling \$82,704.50.

Plaintiff is the
prevailing party in this action, based on the court's decision in its favor
following trial. Plaintiff is therefore entitled to reasonable and actually
incurred attorney's fees and statutorily available costs, pursuant to Health
and Safety Code § 17980.7, subd. (c)(11).

Upon the court's review
of counsel's declarations, the court finds that the following hourly rates are
reasonable: \$350 for partners David R. Welch and Kelley Bond; \$275 for
associates Marius Jungk, Eddie Pitluck, Julian Hasenfratz, Marcus Whittemore,
and Seungjai Oh; \$225 per hour for paralegals Latasha Bonaparte, Emilia Lillo, Karen
Galoyan, and George Krboyan; and \$175 for legal assistants Alexaundria
Gaines-Southwood and David Pease.

Along with the Welch
Declaration, the court has reviewed each entry on the billing statements
submitted by City's counsel. Based on the court's review of the billing
statements and City's arguments, the court finds the requested hours to have
been reasonably spent.

Attorney Welch declares
that he spent 1.5 hours working on the instant motion and that Attorney Jungk spent
6.5 hours preparing the instant motion. (Welch Decl. ¶12.) Attorney Welch also
declares that he anticipates spending 1.5 hours and Attorney Jungk anticipates
spending five hours to review any opposition and prepare a reply, and that
Attorney Welch anticipates spending 1.5 hours to attend the hearing. In light
of the lack of opposition or reply, and to avoid duplicative billing, the court
will reduce the requested hours, for a total amount awarded in connection with
the instant motion of \$2,500.

City also requests that its
attorney's fees be satisfied from the funds on deposit with the court from the

sale of the Property before Non-Party Newtek Small Business Finance, LLC ("Newtek")'s claim on those funds. However, the court has already found that Newtek's claim on the funds on deposit with the court precedes City's claim. Furthermore, a motion for attorney's fees is not the proper procedural vehicle to determine the priority of claims on funds deposited with the court. The court will therefore decline to consider this request.

3.

Conclusion

Based

on the foregoing, the court GRANTS IN PART City's motion for attorney's fees. The court awards City attorney's fees in the total amount of \$80,467.

The

clerk is directed to interlineate the fee award in favor of City on the previously-entered judgment.

City is ordered to give notice.

IT IS SO ORDERED.

DATED: August 3, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court